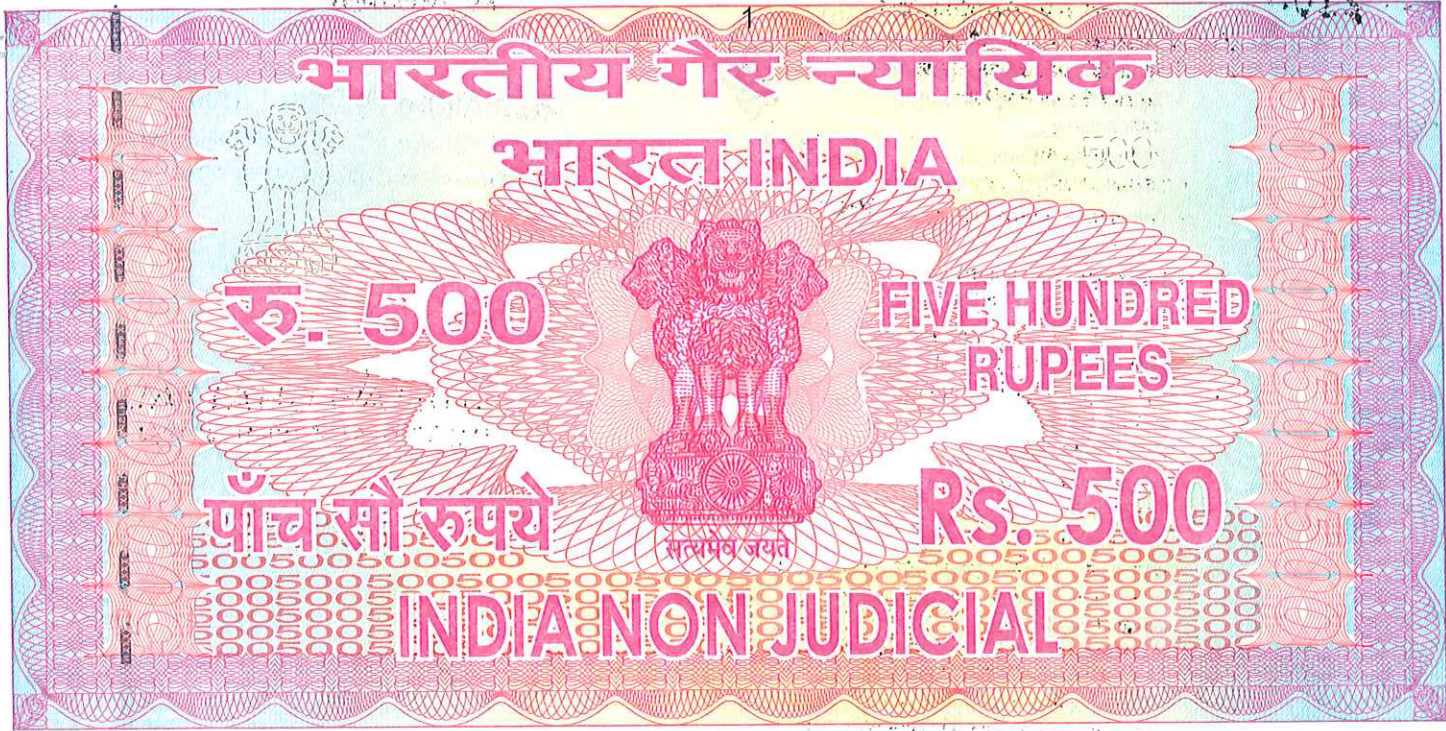




महाराष्ट्र MAHARASHTRA

2020

AX 327539

MASTER RENTAL AGREEMENT
(the "Agreement")

प्रधान मुद्रांक कार्यालय, मुंबई
प.म.वि.क. 600000

30 JUN 2020



THIS AGREEMENT is made on 1st SEPTEMBER 2020

सक्षम अधिकारी

[Signature]

BETWEEN

← Stamp & sign required
श्री. सी. टी. आंबेकर



RENT ALPHA PRIVATE LIMITED, a private company within the meaning of the Companies Act, 1956 ('Act') having its registered office at Unit 501, Wing-D, Lotus Corporate Park, Western Express Highway, Goregaon (East), Mumbai - 400063 (hereinafter referred to as ('Rent Alpha' or "Lessor") of the one part

AND

GE India Industrial Private Limited, a company incorporated under the provisions of the Companies Act, 1956, having its registered officer at

A-18, First Floor, Okhla Industrial Area Phase II, New Delhi 110020 and corporate office at Building No. 7A, 6th Floor, Sector -25 A, DLF Cyber City Phase -3, Gurugram -122002, Haryana (hereinafter referred to as ('Renter', "GEIPL" or "Lessee") of the other part.

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[Signature]





महाराष्ट्र MAHARASHTRA

2020

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MASTER RENTAL AGREEMENT
(the "Agreement")

प्रधान मुद्रांक कार्यालय, मुंबई.

प.म.वि.क्र. ८०००००७

- 6 MAR 2020

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Rent Alpha and GEIPL are hereinafter also individually referred to as a "Party" or collectively the "Parties".

IT IS AGREED:

1. Definitions and Interpretation

1.1 **"Agreement"** means this agreement and all schedules thereto including all Rental Schedules completed from time to time.

"Authorised Signatory" means a signatory referred to in Schedule 1.

"Business Day" means any day other than a Saturday, Sunday or public holiday in the city of Bangalore (public holiday for this purpose shall mean a day which is a public holiday for the purpose of Section 25 of the Negotiable Instruments Act, 1881).

"Commencement Date" means the Commencement Date specified in the applicable Rental Schedule.

"Equipment" means the Equipment described in a Rental Schedule together with any software and manuals supplied with that Equipment, and includes any part of that Equipment or any substituted Equipment.

"Insolvent" means in the case of a company, it shall be deemed to be insolvent (i) if it is unable to pay its debts and is declared insolvent as per the provision of the Insolvency and Bankruptcy Code, 2016; or (ii) if any petition shall have been filed and admitted by a competent court for winding up of the company as per the provision of Section 271 of the Companies Act, 2013; or (iii) if any resolution shall have been passed by any of its creditors or shareholders to wind up the company whether voluntarily, compulsorily, or otherwise; or (iv) the company is declared insolvent under any other Applicable Law for the time being in force. if Lessee files a petition under any bankruptcy, insolvency or similar law, or in the event an involuntary petition is filed against Lessee under any bankruptcy or insolvency laws, and such involuntary petition is not dismissed within 90 days of the filing date.

"Overdue Rate" means interest at the rate of 15% per annum compounding monthly in respect of any amount due but unpaid or as agreed mutually in the rental schedule.

"Payment Date" means the fifteenth day of each month of January, April, July and October occurring during the Term.

"Rental Schedule" means a Rental Schedule substantially in the form given in Schedule 2 or such other form that you and we may agree.

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"Request Order" means purchase requisition raised by Lessee requesting Lessor to procure Equipment as per exact specification from the Vendor specified therein

"Term" means the rental term referred to in clause 3.1, as extended or varied under clause 17 or clause 22 of this Agreement.

"You" means the Renter described above.

"Tax" means any direct or indirect tax, cess, rate duty service tax, lease tax or any other transaction tax on sale or lease of, or on provision for any goods or services and includes any excise duty, import duty, on import, on export duty export, or any other tax or duty on manufacture, processing or making of any goods or services.

"Vendor" means supplier of the Equipment selected by the Lessee.

"We" or "us" means Rent Alpha.

1.1 General

In this agreement headings are for convenience of reference only and do not affect interpretation and, unless the context otherwise requires:

- a) the singular includes the plural and vice versa and masculine includes feminine or neuter gender as the context may require and vice versa;
- b) a reference to a recital, clause, schedule or annexure is to a recital, clause, schedule or annexure of or to this agreement;
- c) a recital, schedule or annexure forms part of this agreement;
- d) a reference to any agreement or document is to that agreement or document (and, where applicable, any of its provisions) as amended, novated, supplemented or replaced from time to time;
- e) a reference to any party to this agreement or any other document or arrangement includes that party's executors, administrators, substitutes, successors and permitted assigns; and
- f) if the day on which any act, matter or thing is to be done under or pursuant to this agreement is not a Business Day, that act, matter or thing shall be done on the preceding Business Day.
- g) If there is an inconsistency in the master rental agreement and the rental schedule the terms of the rental schedule shall prevail.

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2. Renting of Equipment

- 2.1 From time to time, Lessee may raise Request Order on Lessor to procure Equipment by delivering to Lessor a completed and signed Request Order with details of the Equipment Vendor and country of origin. Based on the Request Order received from the Lessee, the Lessor shall place a purchase order on the Vendor. The purchase order of Lessor should reflect all the Terms and Conditions of the Request Order.
- 2.2 From time to time, Lessee will request Lessor to rent the Equipment as per 2.1 above. Lessee agrees to forward completed and signed Rental Schedule in duplicate together with a Vendor's invoice addressed to us in respect of the Equipment. The Rental Schedule should be signed by an Authorised Signatory on your behalf. You acknowledge that by forwarding a Rental Schedule for acceptance by us, you authorise us to pay the Vendor for the Equipment supplied by him.
- 2.3 The Lessor may in their absolute discretion either accept or reject the request raised by the Lessee to rent the Equipment and inform the Lessee about reasons behind the rejections. If we elect to accept your request, we will indicate our acceptance by signing and returning to you a copy of the Rental Schedule. Upon our signing the Rental Schedule an agreement will come into effect between you and us for the rental of the Equipment as herein referred to in that Rental Schedule on the terms and conditions set out in this Agreement and in that Rental Schedule.
- 2.4 If any Equipment is delivered to you before we accept the Rental Schedule for that Equipment, you must in any event observe the provisions of this Agreement relating to care, insurance and use of that Equipment.

3. Rental Term

- 3.1 In respect of each agreement for rental of Equipment arising under this Agreement, the Term commences on the first Payment Date occurring on or after the Commencement Date and, subject to clauses 17 and 22, continues for the number of months specified in the applicable Rental Schedule.

4. Rent

- 4.1. In respect of each agreement for rental of Equipment arising under this Agreement, you will throughout the Term pay us the rental instalments specified in the applicable Rental Schedule together with an amount equal to all Taxes and any other taxes levied on or with respect to the Equipment and Rent transaction from time to time. All payments in terms of this Agreement shall be made without deductions, set off, adjustment or cross claims of any kind, and shall be free of

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exchange, bank costs and other charges. If any deduction is required by law, then you shall increase the amount payable so that we shall receive an amount equal to the sum it would have received had no such deduction been required. TDS deductions if any required by law will be settled between you and us, without affecting the rental instalments specified applicable rental schedule.

- 4.2. The rental instalments are payable quarterly in advance on each Payment Date as per the Rental Schedule.
- 4.3. You will pay the rental instalments by standing instruction for which purpose you will authorize and instruct your bankers to periodically pay the rental amount set out in the applicable Rental Schedule, to our designated account specified in the Rental Schedule.
- 4.4. We may by mutual agreement determine that the Rental Instalments be paid in such other manner from time to time.
- 4.5. Your obligation to pay rent and other moneys under this Agreement is absolute and unconditional irrespective as to the operation non-operation of the Equipment. Without limitation, your payment obligations will continue notwithstanding any defect in, breakdown, accident, loss, theft or damage to or non-delivery of, the Equipment and you shall not be entitled to withhold payment of any Rent even if any Equipment does not function. Your payment obligations are absolute and are not subject to set-off or reduction for any reason provided that we shall be entitled, in our sole discretion, to set off any amounts which we owe to you from any cause whatsoever against any amount due by you to us under this Agreement.

5. Acquisition of Equipment

- 5.1. You will obtain and accept delivery of each Equipment on our behalf as our agent from the Vendor thereof at your expense and, if required, arrange for its installation at your expense.

a. You acknowledge that:

- (i) you have examined the Equipment before accepting it and have satisfied yourself as to its condition and suitability for your purposes and its compliance with any prescribed safety standards;
- (ii) we have given no representation or warranty regarding the quality, fitness, safety or suitability of the Equipment, and no person is authorised by us to do so;

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(iii) you do not have any title to the Equipment;

(iv) no other agreement or representation has been made by us or by any other person which will entitle you to acquire the Equipment at a later date;

(v) you will look to the Vendor, and not us, for any collateral warranty you may require in relation to the Equipment;

(vi) if the Equipment includes software:

- b. to the extent we are permitted, we grant you the benefit of any license or any rights we may have to use the software for the duration of the Term and the Interim Period (if any);
- c. we make no representation about the software and you cannot refuse to pay rental instalments or make any other claim should we not be able to grant rights to use that software or should the software be defective or unsuitable; and
- d. you must return the software to us with the Equipment at the expiration of the Term or upon the earlier termination of this Agreement, as the case may be; and

5.2. To the extent legally possible, we assign to you the benefit of all Vendor or manufacturer warranties which may be given to us in relation to the Equipment for the duration of the rental of the Equipment in terms of this Agreement. You may not waive any of our rights, as purchaser of the Equipment, as against the Vendor, as seller, (in particular warranties of a seller available under the Sale of Goods Act, 1930) and/or as to any other warranty furnished in place of any warranty implied or provided under any law or contract.

5.3. You warrant and represent that to the best of your knowledge you have disclosed to us all facts and circumstances material to this Agreement and not known to us, or which would be material to us including, but not limited to facts and circumstances relevant to the purchase price and/or the market value of the Equipment.

6. Use of Equipment

6.1 You will:

- (a) keep the Equipment in good working order and repair and properly operated and serviced;

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(b) not attempt to sell, dispose of, encumber in any way, or part with possession of the Equipment without our prior written consent;

(c) not alter any identifying markings on the Equipment;

(d) allow us to inspect the Equipment at any reasonable time upon our first giving you reasonable notice; and

6.2 You acknowledge that the Equipment will remain the property of Rent Alpha and/or its successors or assigns, and that you only have the right to use the Equipment. Unless with our prior approval, you further acknowledge and agree that the Equipment will not accede or become permanently attached to any premises or any other property or asset, and that on termination of this Agreement for whatever cause, we shall be entitled to remove the Equipment without compensation to you. You indemnify us against any costs, loss or liability that we may reasonably incur as a result of such removal.

6.3 The Lessee may install the Equipment outside its premises without the express and written consent of the Lessor as a part of normal business operations only. Whilst location of the Equipment shall be indicated in the Rental Schedule, Lessee may change the location of the Equipment without the express and written consent of the Lessor as a part of normal business operations only. Any dismantling, transfer and re-installation of the Equipment shall be carried out at the cost and risk of the Lessee.

6.4 Transfer of the Equipment to third parties is allowed only as a part of normal business operations of the Lessee.

6.5 You shall not, without our prior written approval, install, embed or affix attach the Equipment on or to any immovable property or otherwise fasten permanently to anything attached to any immovable property so as to make the same as immovable property or properties or as a result of which the Equipment is used for beneficial enjoyment of any immovable property

7. Insurance

7.1 We undertake, at your option, to procure that the Equipment is insured for an amount equal to its full insurable value against physical loss and damage under an insurance policy with an insurance company selected by us (hereinafter referred to as the "Rent Alpha Insurance Option"). If you elect to take the Rent Alpha Insurance Option you:

(a) must indicate your election in the appropriate clause of the Rental Schedule;

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- (b) acknowledge and understand that the insurance premiums in respect of the policy will be included in the rental instalments specified in the applicable Rental Schedule;
- (c) undertake to notify us immediately upon the happening of an insured event as defined in the terms and conditions of the policy. If any excess becomes due and payable under the policy, you agree to pay the amount of the excess to us on demand; and
- (d) you undertake to agree to abide by the terms and conditions of the policy and not to prejudice our rights thereunder. You agree to indemnify us against any loss that we may incur as a result of your non compliance with the terms and conditions of the policy, a copy of which will be available on request.

7.2 If we indicate in the Rental Schedule that you are required to insure the Equipment, and you do not elect to take the Rent Alpha Insurance Option as set out in 7.1 you must:

- (a) insure and keep that Equipment insured against loss, fire, accident, theft, earthquake and damage for an amount equal to the full insurable value of the Equipment with a reputable insurer approved by us in our name as owner and your name as Renter for our respective interests;
- (b) provide proof to our satisfaction that adequate insurance has been obtained in accordance with the provisions of this Agreement;
- (c) promptly pay all premiums and stamp duty in respect of such insurance and at our request provide proof to our satisfaction that all such premiums and duties have been paid;
- (d) and hereby do, cede to us all your rights to and interest in the insurance policy/policies taken out in respect of the Equipment as security for the performance of your obligations under this Agreement. We shall be entitled to claim and receive all monies payable under the aforementioned insurance policy/policies and to sign all documents on your behalf as may be necessary to recover all amounts payable under the insurance policies, provided that we shall not claim an amount in excess of the value of our interest in that policy.; and
- (e) not do or permit or suffer to be done anything which might prejudice any such insurance.

If you are required to insure the Equipment in terms of this clause 7.2 and you fail to do so to our satisfaction or if you breach any of your other obligations under this clause 7.2, we shall be entitled (but not obliged) and without prejudice to any other rights we may have, to take out any insurance in respect of the Equipment as we deem fit and you shall immediately pay all our costs and expenses incurred in obtaining such insurance.

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8. **Lost, stolen or damaged Equipment**

- 8.1 If any Equipment is lost, stolen or damaged beyond economic repair, you must immediately notify us in writing and at your cost replace that Equipment with equipment of like nature approved by us. Title in respect of such replacement equipment will vest in us from the date on which it is delivered to you and this Agreement will continue with respect to that equipment as if it was the original Equipment. You agree and undertake to accept delivery of such replacement equipment on our behalf with the intention that we will become owner of such equipment. You agree to enter into an amended Rental Schedule recording the replacement equipment.
- 8.2 Provided you have complied with your obligations under clause 8.1 we will pay to or credit you with the amount of any insurance proceeds which we may receive under clause 7.

9. **Essential Terms**

- 9.1 The following terms are fundamental and essential terms:
- (a) that you pay all rental instalments on time;
 - (b) that you keep the Equipment insured as set out in clause 7;
 - (c) that you do not cease or threaten to cease carrying on the business;
 - (d) that you do not become Insolvent or commit an act of insolvency as defined in the Insolvency and Bankruptcy Code, 2016 or in the Provincial Insolvency Act, 1920 or in the Presidency Towns Insolvency Act, 1909 as applicable; and
 - (e) that you do not attempt to sell, dispose of, encumber or part with possession of the Equipment in any way without our written consent.
- 9.2 In no event we will be liable to pay any indirect Taxes or any other amount payable on any Rent this Agreement or this transaction.
- 9.3 You will be deemed to have repudiated this Agreement if you breach any of the essential terms referred to in clause 9.1.
- 9.4 Subject to compliance with clause 9.1 and 10.1, you shall have absolute control and possession of the Equipment for the Rental Term.

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10. Default

10.1 An event of default shall be deemed to occur if:

- a. you do not perform on time any of your obligations under this Agreement, as listed in essential terms clause 9.1;
- b. if any representation or warranty made by you in connection with this Agreement is found to be materially incorrect or misleading;
- c. you fail to pay an indebtedness in terms of a final judgment or court order; or you commit a material breach under any rental schedule(s), of whatsoever nature, concluded between you and us.
- d. In case there is any change in the control or constitution or majority ownership from existing shareholders (which results in transfer of ownership of from Holding Company of Lessee to a third party of a stake greater than 50%) of the Renter without our prior written consent (which consent shall not be unreasonably withheld or delayed).

11. Termination

11.1 We may give you notice terminating the renting of all Equipment then being rented under this Agreement, or in our sole discretion only with respect to the Equipment being rented in terms of a particular Rental Schedule, if there is a breach of any essential term specified in clause 9.1 and where that breach is capable of remedy, you do not remedy that breach within fifteen (15) Business Days after written notice from us.

11.2 We may also give you notice terminating the rental of all Equipment then being rented under this Agreement or in our sole discretion only the Equipment the subject of a particular Rental Schedule if an event of default as set out in clause 10.1 occurs and, where that default is capable of remedy, you do not remedy that default within ten (10) Business Days' notice from us to you to do so.

11.3 If we terminate the renting of any Equipment under clause 11.1 or 11.2, you must immediately:

- (a) return the Equipment to us at a place specified by us within the borders of India;
- (b) pay to us all moneys then due and payable under this Agreement;

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- (c) pay to us as liquidated damages equal to the aggregate amount of all future rentals payable under this Agreement.
- (d) pay to us any early repayment or other break costs incurred by us or a secured or financing party or the owner of the Equipment in pre-paying any funding arrangements in connection with the purchase and renting of the Equipment to you.

11.4 Any termination of this Agreement and any payment does not affect any other rights the Parties have under this Agreement or law or otherwise.

11.5 You may also terminate the renting of all Equipment under this Agreement by giving a prior written notice of one hundred and twenty (120) days.

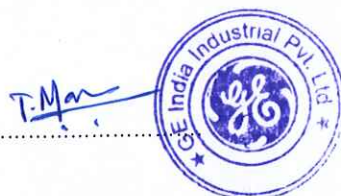
In case, you terminate the Agreement or renting of any Equipment under this clause for any reason then you must immediately:

- a) return the Equipment to us at a place specified by us within the borders of India or buy the same at a value mentioned as Early Buyout Amount in the Rental Schedule.
- b) pay to us all moneys then due and payable under this Agreement;
- c) pay to us as Present Value of the aggregate amount of all future rentals payable under this Agreement at a discount rate mentioned in the respective Rental Schedule.
- d) pay to us any early repayment or other break costs incurred by us or a secured or financing party or the owner of the Equipment in pre-paying any funding arrangements in connection with the purchase and renting of the Equipment to you.

11.6 Early Buyout Option ("EBO")

Subject to compliance of terms of the Master Rental Agreement at all times, you have option to terminate any Rental Schedule and purchase all equipment under that particular rental schedule on the EBO Date mentioned in the Rental schedule.

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This option can only be exercised on the date mentioned in the Rental Schedule by giving us 15 days prior notice. If you exercise the EBO, you must

- (a) pay to us all moneys then due and payable under this Agreement;
- (b) pay to us the amount mentioned in the Rental Schedule Clause 9.

11.7 Except as aforesaid neither this Agreement nor any Rental Agreement shall be terminated by either party.

12. Exclusion of Warranties

12.1 To the full extent permitted by law, all express and implied terms, conditions and warranties (other than the ones set out in this Agreement) are excluded by us.

12.2 We are not liable for any damage, injury or loss to any person or property arising from the possession, operation or use of the Equipment.

13. Return of Equipment

13.1 At the expiration or earlier termination of the renting of the Equipment you will at your expense deliver the Equipment in good working order and condition with normal wear and tear, packed and crated in a similar manner as originally supplied, to our nominated place within the borders of India.

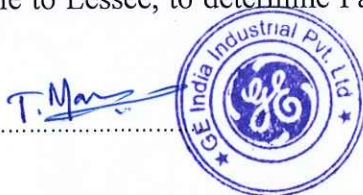
13.2 The Equipment will not be regarded as returned, unless (where applicable) it is decommissioned in accordance established policies and protocols with the original manufacturer's specifications by an authorised person, and it is returned in accordance with the requirements set out in this Agreement.

13.3 End of Term Purchase Option

On the Expiration of respective Rental Schedule, provided you have complied with all the terms of the agreement you may exercise the option to purchase all the Equipment in the rental schedule on AS IS WHERE IS BASIS without recourse to or warranty from the Lessor, express or implied for the Fair Market Value as defined herein.

"Fair Market Value" shall mean the price that a willing buyer would pay for the Equipment to a willing seller under no compulsion to sell. In determining the Fair Market Value, the Equipment shall be assumed to be in the condition in which it is required to be maintained and returned under Master Rental Agreement and Rental Schedules thereof. If Lessor and Lessee are unable to agree on the Fair Market Value, Lessor shall appoint an independent appraiser, reasonably acceptable to Lessee, to determine Fair Market Value, the cost of such appraiser

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shall be split equally between Lessor and Lessee, and such independent appraiser's determination shall be final, binding and conclusive.

All end of term options include 'all, but not less than all' of the Equipment rented under the Master Rental Agreement and Rental Schedules thereof.

EQUIPMENT RETURN CONDITIONS:

In addition to the provisions provided in the Master Rental Agreement and Rental Schedules thereof, and provided that Lessee has elected not to exercise its option to purchase or renew the Equipment, Lessee shall, at its expense:

- a) Ensure that the Equipment is returned to Lessor: in good operating condition considering normal wear and tear, able to perform to the as originally intended functions under full load;
- b) at least one hundred eighty (180) days prior to expiration or earlier termination of the Rental Schedule, upon receiving reasonable notice from Lessor, provide or cause the Vendor(s) or manufacturer(s) to provide to Lessor the following documents: (i) one set of service manuals, current Equipment layout drawings and operating manuals including replacements and/or additions thereto, such that all documentation is completely up-to-date; (ii) one set of documents, detailing Equipment configuration, operating requirements, maintenance records, and other technical data concerning the set-up and operation of the Equipment, including replacements and/or additions thereto.
- c) at Lessor's choice, either (i) allow Lessor, at Lessor's expense, and provided Lessor has provided reasonable notice to Lessee, to arrange for an on-site auction of the Equipment in an assembled and functional state. Any such auction will be conducted no more than sixty (60) days prior to termination of each Rental Schedule and will be conducted in a manner which will not interfere with Lessee's business operations, or (ii) provide for the deinstallation, packing, and transporting of the Equipment, at Lessee's expense, to include, but not limited to, the following: (1) the manufacturer's representative or other person acceptable to Lessor, shall de-install all Equipment including all wire, cable, and mounting hardware; (2) if applicable, the Lessee shall ensure all necessary permits and labor are obtained to redeliver the Equipment; (3) the Equipment shall be packed properly; (4) the Lessee shall provide for the transportation of the Equipment to a location within India; and shall have the Equipment unloaded at such locations; (5) Lessee shall obtain and pay for a policy(ies) of transit insurance for the Equipment in an amount equal to the replacement value of the Equipment and Lessor shall be named as the loss payee on all such policies of insurance.

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- d) In circumstances where we terminate for non-payment of rental installments by you, we shall also, at our option and in addition to claiming the liquidated damages as per clause 11.3 be entitled to, dismantle and remove the Equipment from the place where it shall have been kept and take away therefrom (including by our servants and agents entering upon any land, building or premises where the Equipment is or where we or our agents or servants reasonably suspect the Equipment is and detaching or dismantling the Equipment from any part of the freehold to which it may be affixed) and sell the Equipment by at the prevailing open market price and for that purpose, we shall have right to enter into any premises where such Equipment is located subject to receiving permission from the owner or occupant of the premises where the Equipment is located. You shall provide all reasonable assistance in obtaining permission as aforesaid and shall pay all reasonable costs and expenses incurred by us in exercising or attempting to exercise our rights to remove the Equipment as aforesaid.

14. Costs, Duties, Charges and Commissions

14.1 You must pay or reimburse us for:

- (a) All Taxes and all other, taxes, cess, dues and duties payable in connection with this Agreement and the transaction contemplated hereby or in connection with any payment, receipt or other transaction arising under this Agreement; and
- (b) any costs and all taxes incurred by your breach of this Agreement

15. Maintenance Charges

15.1 If any maintenance or warranty charges for the Equipment have been included in the rental instalments, you acknowledge that:

- (a) you have given us a direction to pay the maintenance provider and to include such charges in the Rental instalments;
- (b) we are not responsible for the maintenance of the Equipment; and
- (c) any failure or breach on the part of the maintenance provider will not in any way release you from your obligation to pay the Rental installments and observe your other obligations under this Agreement.

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16. Indemnities

16.1 You indemnify us against:

- a) any loss of or damage to the Equipment, however arising;
- b) any loss which we may suffer as a result of any representation or warranty made by you in connection with this Agreement being found to be materially incorrect or misleading;
- c) liability for any death, injury or damage to any person or property arising directly or indirectly from the Equipment or its use;
- d) any claim for breach of intellectual property rights arising in connection with the Equipment or its use;
- e) any loss or liability incurred by us resulting from possession, use or operation of the Equipment by you; and
- f) any liability which we may incur under any tax legislation attributing to you by reason of the use of the Equipment for any purpose other than as stated by you to us;
- g) provided that such loss, damage, claim or liability is not due to our negligence. Each indemnity in this clause 16.1 is a separate and independent obligation and continues after termination of this Agreement.

We shall indemnify you against any direct losses caused to you due to any non-payment by us to the vendor.

17. End of Term

17.1 At the conclusion of the Term, you may either return the Equipment or request us under clause 13.3 to purchase the Equipment or request us under clause 22 to agree to extend the Term or vary the Equipment rented. You must in either case give us written notice of your intention at least 120 Business Days prior to the expiry of this Agreement. If you do not give us written notice within the above-mentioned period you agree that, unless we otherwise notify you in writing, the Term will be automatically extended for a further term of Nine (9) month based on average rent for the Term. All other terms and conditions remain unchanged.

17.2 If you give us notice under clause 17.1 that you will be returning the Equipment then you must deliver the Equipment to us on the expiry of the Term in accordance with clause 13. If you do not do so, the Term will be automatically extended for a further term of nine (9) months based on average rent for the Term. All other terms and conditions remain unchanged.

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18. Overdue Payments

- 18.1 In respect of any amount due but unpaid you must pay to us on demand interest at the Overdue Rate calculated on a daily basis compounded monthly.

19. Confidentiality

- 19.1 Both parties must each keep confidential all information about each other which is in its nature confidential and which comes into either party's possession.
- 19.2 Neither party is permitted to disclose any confidential information about the other without the consent of the other unless:
- (a) that information has become publicly available; or
 - (b) disclosure is required by law; or
 - (c) disclosure is to any other party providing finance or assuming any credit risk or participating in the funding of the Equipment or this Agreement
 - (d) the disclosure takes place pursuant to clause 26.

20. Financial Information

- 20.1 You undertake at our request to submit annual audited financial statements and/or interim financial statements to us or to direct us to the relevant website where that information can be inspected. If the Renter is a company then the annual financial statements must be independently audited.

21. Representations and warranties by the Renter

- 21.1 You represent and warrant subject to the disclosures in the Annual report that there are no pending or threatened investigations, litigation or proceedings affecting you that (a) may have a material adverse effect on your business, condition (financial or otherwise) or on the results of your operations, or your ability to perform your obligations under this Agreement; and/or (b) purports to effect the legality, validity or enforceability of this Agreement.
- 21.2 You represent and warrant that the Rental installments payable in terms of this Agreement are deductible from your income. Even if the same are not deductible you shall be liable to pay the same.

Initial here (GEIPL)



Initial here (Rent Alpha)



- 21.3 Post Delivery of the Equipment, the warranties and representations, unless otherwise stated in respect of any warranty, (in which case the specified date or period will apply) are given as at the date of signing of this Agreement and on the date of signature of each Rental Schedule from time to time and for the entire period between those dates.

22. Miscellaneous

- 22.1 We may in our absolute discretion agree to a request by you to vary any terms of this Agreement or a Rental Schedule, including a variation of the Term or of the Equipment rented.
- 22.2 No variation of this Agreement or waiver of any right under this Agreement will be effective unless it is recorded in writing and signed by or on behalf of yourselves and ourselves.
- 22.3 This Agreement constitutes the whole agreement between the parties with regard to the subject matter hereof, and you waive the right to rely on any alleged express provision not contained herein.
- 22.4 No relaxation or indulgence that we may grant you shall be deemed to be a waiver of any of our rights in terms of this Agreement.

23. Severance

- 23.1 If any provision of this Agreement is or becomes illegal, invalid or unenforceable, such provision shall be severed and the remaining provisions shall continue unaffected.

24. Governing Law and Jurisdiction

- 24.1 This Agreement shall be governed by and construed in accordance with laws of India
- 24.2 We both agree to submit any dispute to arbitration under the Rules of Arbitration of the Indian Institution of Arbitration, in which case each party to the dispute shall appoint an arbitrator and the arbitrators so appointed shall together appoint one or more arbitrators so that the arbitrators shall always be in odd number. In the event of a vacancy caused in the office of the arbitrator, the party or the arbitrators, as the case may be, who shall have appointed such arbitrator shall appoint a substitute arbitrator in that vacancy. Arbitration proceedings shall be conducted in the City of New Delhi, India. The language to be used in the arbitration will be English. The award given by the majority of arbitrators shall be final conclusive and

Initial here (GEIPL)

T. Man



Initial here (Rent Alpha)

[Signature]



binding upon the parties. This clause shall survive the expiration or the termination of this Agreement.

25. Waiver

25.1 No waiver by us of any default, breach or repudiation by you will affect our rights in respect of any further or continuing default, breach or repudiation.

26. Assignment and Agency

26.1 We may sell or assign either absolutely or by way of security all or any of our rights and/or obligations under this Agreement and/or to the Equipment to any other person. Upon such assignment you acknowledge that:

- (a) we shall be entitled to transfer all Renter related information to such person; and
- (b) where applicable, you will recognise the person as the new owner of the Equipment and that you will hold the Equipment on behalf of the person subject to the terms and conditions of this Agreement.

26.2 You shall not assign any of your obligations or rights hereunder to a third party unless prior written consent has been provided by Rent Alpha (which consent shall not be unreasonably withheld or delayed).

27. Business Day

If the day on which anything to be done is not a Business Day, then: it shall be done no later than by close of business on the previous Business Day.

28. Notices

28.1 The parties choose the following addresses as the address at which they will accept service of any notice or legal proceedings and for all other purposes in connection with this Agreement. In the case of Rent Alpha notices must be marked for the attention of a director of Rent Alpha.

Rent Alpha Pvt. Ltd: Unit 501, Wing - D,
Lotus Corporate Park,
Western Express Highway,
Goregaon (East),
Mumbai - 400063
Maharashtra

Initial here (GEIPL)



Initial here (Rent Alpha)



Phone: 022 – 6173 7600

The Renter:

M/s. GE India Industrial Pvt Ltd

**A-18, First Floor, Okhla Industrial Area Phase
II, New Delhi 110020**

- 28.2 Notices may be hand delivered or sent by pre-paid registered mail.
- 28.3 Notices sent by pre-paid registered mail will be taken to be received on the 7th Business Day after posting.

Equipment

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T. Man



Initial here (Rent Alpha)

AB



Signed at BANGALORE on 1st SEPTEMBER 2020





for and on behalf of [RENTER]

Capacity: SENIOR PROJECT MANAGEMENT STAFF MANAGER

Name (printed): T. MARAN



Witness

Name (printed): RAMAKRISHNAN. K.

Signed at Bangalore on 07. Sept - 2020 2020



for and on behalf of RENT ALPHA PRIVATE LIMITED



Capacity: _____

Name (printed): _____

Witness

Name (printed): _____

SCHEDULE 1

The following persons are Authorised Signatories of the Renter for all purposes arising in connection with this Agreement, including but not limited to, the signing of Rental Schedules from time to time and for all purposes arising in connection with the payment of the Rental Installments referred to in clause 4 of the Agreement:

1. The persons listed below:-

1.1 Name

Title/Position

Specimen Signature

1.2 Name

Title/Position

Specimen Signature

1.3 Name

Title/Position

Specimen Signature

1.4 Name

Title/Position

Specimen Signature

2. Such other persons whose names and specimen signatures are advised in writing by the Renter from time to time.

3. Any person for the time being holding or being held out as holding any of the following positions

1. _____ 2. _____ 3. _____

4. _____ 5. _____ 6. _____

Initial here (GEIPL)



Initial here (Rent Alpha)



SCHEDULE 2
RENTAL SCHEDULE NO.

RENTAL SCHEDULE BETWEEN:

(1) **RENT ALPHA PRIVATE LIMITED** ("Rent Alpha");

and

(2) _____ ("the Renter").

1. The Renter and Rent Alpha are parties to a Master Rental Agreement dated _____.
2. Capitalised terms which are defined in the Master Rental Agreement have the same meanings when used in this Rental Schedule.
3. You offer to rent from us the Equipment described below. We agree to rent the Equipment to you at the rental and for the period set out below and subject to the terms and conditions of the Master Rental Agreement.

(a)

Equipment:	
-------------------	--

(b)

Term:	Months
--------------	--------

(c)

Rental Instalments	Rs.	Payable quarterly on each Payment date
Taxes	As Applicable	
Total	Rs.	

In accordance with clause 4 of the Master Rental Agreement you hereby instruct and authorise us to draw against your bank account, the current details of which are:

Bank:	Branch:	Account No.:
-------	---------	--------------

(or any other bank or branch to which you may transfer your account) the amount of the quarterly rental instalments and any other amounts due to us by you in terms of the Rental Agreement.

(d)

Commencement Date:	
---------------------------	--

Initial here (GEIPL)

T.M.



Initial here (Rent Alpha)

[Signature]



AS PER PO TERMS & LEASE DOCUMENT

4.	Insurance Required:	Yes
	To be done by Renter	Yes

5. **Prior Delivery:** If the above mentioned Equipment is delivered to you before we accept this Rental Schedule, you must in any event observe the provisions of the Rental Agreement relating to care, insurance and use of that Equipment as if the rental Agreement were applicable thereto.
6. **Authority:** You irrevocably acknowledge and agree that the forwarding of this Rental Schedule for acceptance by us shall constitute an irrevocable authority to us to pay the Vendor of the Equipment referred to in this Rental Schedule in order for us to procure that Equipment.

Signed on _____

For and on behalf of GEI IPL



[RENTER]

Authorized Signatory :

Name

Title

Witness

T. Maran

: T. MARAN

: SENIOR PROJECT MANAGEMENT STAFF MANAGER

: Ram (RAMAKRISHNAN. K)

ACCEPTED BY RENT ALPHA PRIVATE LIMITED:

Authorized Signatory :

Name

Title

Dated

Witness

Initial here (GEI IPL)

T. Maran



Initial here (Rent Alpha)

AB

